

Court No. - 21

Case :- WRIT - C No. - 40916 of 2014

Petitioner :- Indra Pratap Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Dinesh Kumar Misra,R.P. Singh Parihar

Counsel for Respondent :- C.S.C.,Mahboob Ahamad

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Vivek Kumar Birla,J.

Heard Sri Dinesh Kumar Misra, learned counsel for the petitioner.

The petitioner is a tenure holder. With regard to his chak allotment, the petitioner has filed a Writ Petition No. 59204 of 2012 challenging the order of the Deputy Director of Consolidation in relation to the allotment of chaks.

The said order has partly allowed the relief in favour of the petitioner, where according to the petitioner, the tube well has been allotted in his share. The petitioner contends that he is running the tube well and he has also deposited the electricity bills. In such a situation, he is entitled to get the connection transferred in his favour. It is for this that the petitioner has come up before this Court for a direction to the Executive Engineer to pass appropriate orders.

The contention of Sri Misra is that even if the writ petition in the consolidation matter filed by the petitioner is dismissed and the order of the Deputy Director of Consolidation is confirmed. There is no challenge raised by any of the co-tenure holders to the same and in that event, the tube well shall be retained by the petitioner.

Sri R.S.Umaro, learned counsel for the Electricity Department submits that such a claim can be considered and disposed of in terms of Clause 4.44 (g) of the Electricity Supply Code, 2005 by the Executive Engineer.

Consequently, the writ petition is **disposed of** with a direction to the respondent no.3 to examine the request of the petitioner and then proceed to pass an order in accordance with law expeditiously preferably within three months from the date of production of a certified copy of this order, provided that there is no other legal impediment.

Order Date :- 8.8.2014

Ajay